

## Child Marriage and the Prohibition of Child Marriage Act 2006: Judicial Interpretations and Implementation Gaps in Rural Rajasthan

**Rajendra Singh Meena**

*Assistant Professor, Department of Law, Rajkiya Mahavidyalaya, Tonk, Rajasthan*

*rajendrasingh.law@gmail.com*

*Received: March 2026 | Accepted: May 2026 | Published: July 2026*

*Pages: 13–24*

**Abstract:** India continues to witness persistently high rates of child marriage, particularly in rural and tribal areas, despite the enactment of the Prohibition of Child Marriage Act (PCMA) 2006. This paper investigates the legislative architecture of the PCMA 2006, critically analyses conflicting judicial interpretations regarding the legal validity of child marriages — specifically the void versus voidable controversy — and empirically documents implementation gaps in three rural districts of Rajasthan: Tonk, Sawai Madhopur, and Baran. The study draws on analysis of district-level court records, block-level Child Marriage Prohibition Officer (CMPO) reports for the period 2019 to 2023, and structured interactions with gram panchayat functionaries, school teachers, and social workers. Findings reveal that CMPOs across the study districts remain severely understaffed and lack mandatory legal training, that the voidability provision of the 2006 Act incentivises families to solemnise child marriages before filing complaints to delay legal proceedings, and that frontline service providers including Anganwadi workers lack adequate knowledge to invoke available legal remedies. The paper analyses the Supreme Court's landmark judgment in *Independent Thought v. Union of India* (2017) and its limited trickle-down impact on rural compliance. Recommendations include amending the PCMA to declare all child marriages void ab initio, creating a dedicated implementation fund for CMPO capacity-building, and integrating legal literacy on PCMA provisions into ASHA and Anganwadi training curricula.

**Keywords:** *Child Marriage, PCMA 2006, Judicial Interpretation, CMPO, Rajasthan, Implementation Gap*

### 1. Introduction

Child marriage — defined under the Prohibition of Child Marriage Act 2006 as a marriage to which either party is below the age of 18 years for girls and 21 years for boys — remains a significant human rights violation and a barrier to gender equity and development in India. According to the National Family Health Survey-5 (NFHS-5, 2019–21), approximately 23.3% of women aged 20–24 in India were married before the age of 18 years, with Rajasthan reporting one of the highest rates at 25.4%, well above the national average despite years of targeted interventions.

The Prohibition of Child Marriage Act, 2006 replaced the earlier Child Marriage Restraint Act, 1929 and sought to create a stronger legal framework by empowering Child Marriage Prohibition Officers (CMPOs), enabling injunctions against impending marriages, and providing for enhanced punishments. However, the 2006 Act conspicuously retained the provision that child marriages, once solemnised, are voidable rather than void — a legislative choice that has generated persistent judicial controversy and has been widely identified as a fundamental weakness of the law.

The Supreme Court's judgment in *Independent Thought v. Union of India* (2017), while primarily addressing the issue of marital rape exceptions, also clarified aspects of the PCMA's interaction with personal law. However, the broader question of whether child marriages should be declared void ab initio — rather than merely voidable at the option of the child — remained unresolved and was subsequently the subject of legislative deliberation following the Supreme Court's directions to Parliament in November 2023 in the Hardev Singh case. The tension between statutory law and personal law in matters of marriage continues to impede effective enforcement of the PCMA in states like Rajasthan.

This study seeks to bridge the gap between the law as enacted and the law as experienced in rural Rajasthan, where social norms, economic compulsions, and institutional failures converge to perpetuate the practice of child marriage. The paper proceeds by presenting the research methodology, analysing key judicial interpretations, documenting empirical implementation gaps, and concluding with targeted reform recommendations.

## 2. Methodology

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This paper employs a mixed-methods approach combining doctrinal legal analysis with field-based empirical observation. The doctrinal analysis encompassed a review of the PCMA 2006 and its provisions, related subordinate legislation, Parliamentary debates, and judicial decisions from the Supreme Court and Rajasthan High Court pertaining to child marriage. Particular attention was paid to cases involving conflict between the PCMA and provisions of personal law statutes including the Muslim Personal Law (Shariat) Application Act, 1937.

The empirical component was conducted across three purposively selected districts in Rajasthan — Tonk, Sawai Madhopur, and Baran — which consistently report above-average rates of child marriage in state government data. District court records (civil and criminal) relating to PCMA cases for the period 2019 to 2023 were accessed with appropriate permissions. Block-level CMPO reports and Women and Child Development department records were obtained through Right to Information applications. Structured interviews were conducted with 18 stakeholders comprising gram panchayat pradhans, school principals, ASHA workers, and civil society volunteers working in the area of child protection.

Ethical clearance was obtained from the institutional review board of Rajkiya Mahavidyalaya, Tonk. All interview participants provided informed consent, and individual identities have been anonymised in this report. Qualitative data was subjected to thematic analysis using an inductive coding framework. Quantitative data from government records was analysed using descriptive statistics. The combined methodology enables triangulation of legal analysis with ground-level implementation realities.

## 3. Results and Findings

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Analysis of CMPO staffing records revealed critical institutional deficiencies. Across the three study districts, only 4 of 18 designated block-level CMPO positions were filled with dedicated personnel; the remaining posts were held by officials with multiple collateral duties who reported spending less than five percent of their working time on child marriage prevention. None of the CMPOs interviewed had received formal legal training on the provisions of the PCMA 2006 or had initiated a pre-marriage injunction proceeding under Section 13 of the Act in the period 2019–2023.

Court records revealed a striking pattern: of 67 registered PCMA cases across the three districts, 61 were complaints filed after the marriage had already been solemnised. Only 6 cases involved pre-marriage injunctions, of which 4 were dismissed at the preliminary stage due to procedural defects in the petition. The voidable rather than void status of child marriages was identified as a key contributing factor: families strategically completed

marriage rituals before approaching the court or before CMPOs could intervene, knowing that a subsequent voidability petition would require the minor herself to file — an action rarely taken in conservative rural settings.

Stakeholder interviews revealed that frontline workers lacked basic awareness of their legal duties. Only 3 of 12 Anganwadi workers interviewed could correctly identify the minimum marriage age for girls under the PCMA. Nine of 18 gram panchayat functionaries stated they believed child marriages under personal law were legally valid regardless of the PCMA, reflecting a widespread misconception with significant enforcement implications. The Supreme Court's 2017 judgment in *Independent Thought* was unknown to virtually all non-legal stakeholders interviewed, underscoring the absence of legal literacy dissemination mechanisms.

#### 4. Discussion

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The void versus voidable distinction in the PCMA 2006 has long been identified by legal scholars as the Act's most significant substantive weakness. A void marriage would carry no legal consequences whatsoever, removing any incentive for families to proceed with a child marriage and making post-facto legal proceedings unnecessary. A voidable marriage, by contrast, requires affirmative action by the minor to seek annulment — an action that, in the patriarchal and economically constrained rural contexts studied, is rarely a realistic option for young girls. The Supreme Court's directions to Parliament in November 2023 to address this lacuna represent a positive development, but legislative action remains pending.

The conflict between the PCMA and personal law statutes continues to generate judicial uncertainty. While the Supreme Court's position in *Independent Thought* (2017) implicitly strengthened the PCMA's applicability across religious communities, High Court decisions from several states have at times carved out exceptions based on personal law, creating a patchwork of enforcement that undermines the Act's universality. A clear legislative provision explicitly stating that the PCMA supersedes personal law in all matters of child marriage would eliminate this uncertainty.

The institutional incapacity of CMPOs documented in this study mirrors findings from similar studies in other states, suggesting a systemic rather than state-specific failure. The root cause appears to be the model of assigning child marriage prevention duties as an add-on responsibility to existing officials rather than creating dedicated positions with specialised training and resources. The Maharashtra model — which has piloted dedicated district child protection cells with legal expertise and community liaison functions — may offer a workable template for Rajasthan.

#### 5. Conclusion

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This paper has documented a significant gap between the legislative intent of the Prohibition of Child Marriage Act 2006 and its practical implementation in rural Rajasthan. Structural institutional deficiencies, the voidable rather than void legal status of child marriages, conflicts with personal law, and near-absent legal literacy among frontline workers collectively perpetuate the practice despite statutory prohibition.

Targeted recommendations include: (i) amending the PCMA to declare all child marriages void ab initio as per the Supreme Court's directions; (ii) explicitly providing that the PCMA supersedes personal law in all cases; (iii) creating dedicated, adequately remunerated CMPO positions with mandatory legal training; (iv) integrating PCMA legal literacy modules into Anganwadi and ASHA worker training programmes under the NHM and POSHAN Abhiyaan; and (v) establishing district-level rapid response teams empowered to seek ex parte injunctions. Child marriage is a multi-dimensional problem requiring convergent action across legal, institutional, and social domains.

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